

POWELL, J., dissenting

445 U.S.

makes municipalities liable for constitutional deprivations only if the challenged action was taken "pursuant to official municipal policy of some nature. . . ." As the Court noted, "a municipality cannot be held liable *solely* because it employs a tortfeasor. . . ." 436 U. S., at 691 (emphasis in original). The statements of a single councilman scarcely rise to the level of municipal policy.⁶

As the District Court concluded, "[a]t most, 'the circumstances . . . suggested that, as Chief of Police, [Owen] had been an inefficient administrator.'" 421 F. Supp., at 1122. This Court now finds unconstitutional stigma in the interaction of unobjectionable official acts with the unauthorized statements of a lone councilman who had no direct role in the discharge process. The notoriety that attended Owen's firing resulted not from any city policy, but solely from public misapprehension of the reasons for a purely discretionary dismissal. There was no constitutional injury; there should be no liability.⁷

II

Having constructed a constitutional deprivation from the valid exercise of governmental authority, the Court holds that municipalities are strictly liable for their constitutional torts. Until two years ago, municipal corporations enjoyed absolute immunity from § 1983 claims. *Monroe v. Pape*, 365 U. S.

⁶ Roberts himself enjoyed absolute immunity from § 1983 suits for acts taken in his legislative capacity. *Lake Country Estates, Inc. v. Tahoe Regional Planning Agency*, 440 U. S. 391, 402-406 (1979). Owen did sue him in state court for libel and slander, and reached an out-of-court settlement. See *supra*, at 660-661.

⁷ This case bears some resemblance to *Martinez v. California*, 444 U. S. 277 (1980), which involved a § 1983 suit against state parole officials for injuries caused by a paroled prisoner. We found that the plaintiffs had no cause of action because they could not show a causal relationship between their injuries and the actions of the defendants. 444 U. S., at 285. That relationship also is absent in this case. Any injury to Owen's reputation was the result of the Roberts statement, not the policies of the city of Independence.